

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. No further proceedings are contemplated.

16. 9:00 AM CASE NUMBER: MSC21-02036

CASE NAME: PEOPLE OF CA VS. CORTEVA INC

***HEARING ON MOTION FOR DISCOVERY COMPEL DEFENDANTS RESPONSES AND PRODUCE DOCUMENTS**

FILED BY: PEOPLE OF THE STATE OF CALIFORNIA EX REL. MEREDITH WILLIAMS, DIRECTOR OF THE CALIFORNIA DEPARTMENT OF TOXIC SUBSTANCES

TENTATIVE RULING:

Plaintiff People of the State of California, ex rel. Katherine M. Butler, Director of the California Department of Toxic Substances Control (DTSC) moves to compel further discovery responses from Defendants Corteva, Inc. Dow Agrosiences, LLC, and Corteva Agriscience, LLA (Corteva) and E.I. du Pont de Nemours and Company (DuPont).

Since the filing of the motion, the scope of the motion has been narrowed somewhat. The motion is withdrawn as to DuPont. As to Corteva, the motion seeks to compel further responses to Form Interrogatory Nos. 12.1 and 15.1; Special Interrogatories Nos. 1, 4, 5, 7-10, 12-15, 18, 20, 24-34, and Requests for Production of documents Nos. 1-5, 7, 9, 12-50, and 54, and to comply with previous agreements to produce documents in response to requests Nos. 10, 11, 13, 48, 49, and 53, and provide a privilege log. Corteva has agreed to supplement its responses, specifically Form Interrogatories number 12.1 and 15.1, while withdrawing its 8th, 17th, 18th, 24th, and 25th affirmative defenses. It will supplement its responses to Special Interrogatory No. 7, and produce the Site Water Balance document referred to in response to Special Interrogatories No. 12-14, 18, 20, 24, and 26. Corteva would produce amended responses within 30 days of the hearing on the motion. (DTSC wants the supplemental responses by January 13, 2026.)

As a general matter, Corteva argues that the scope of DTSC's discovery requests are beyond the scope of the "limited" issues in the case. This is not apparent to the Court, especially given the broad scope of discovery permitted by Code of Civil Procedure section 2017.010.

Corteva objects to some of the discovery (Requests for Production Nos. 1-5, 7, 9, 10, 13-50, and 54) on the ground that responses were provided in response to discovery requests from intervenor Communities for a Better Environment (CBE). While this may be a reason why counsel, in the interest of efficiency, might agree to avoid duplicative discovery, it is not a valid objection to the requests. Assuming, however, that the documents were produced electronically, the burden on Corteva of producing additional electronic copies of the documents in question is not great. Moreover, DTSC contends that there is only some overlap with the CBE discovery and that the responses to the CBE discovery were not adequate.

The Court notes that to the extent Corteva argues that it does not have some of the documents requested, this may be the basis for a response of "inability to comply" in compliance with Code of Civil Procedure section 2031.230, which enables the responding party to state that, "a diligent search

and a reasonable inquiry has been made[.]” The statement also must “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer in the possession, custody, or control of the responding party.”

The Code permits responses to interrogatories that refer to documents, but only under limited circumstances. Code of Civil Procedure section 2030.230 provides that where an answer “would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained.” This does not permit a response to an interrogatory of “see the documents.” The documents must be specified, and the burden of making the summary must be “substantially the same” for each party.

The Court describes these general requirements for discovery because it appears that nearly all of the issues in the motion arise from Corteva and DTSC’s differences over the general scope of discovery. Given the Court’s general guidance—which likely would lead to granting DTSC’s motion at least in large part—the parties are directed to meet and confer over the remaining issues in the pending motion. **The matter is continued to February 5, 2026, at 9:00 a.m.** The parties are to file a joint statement indicating the matters that have been resolved and the matters that remain unresolved (if any), no later than January 29, 2026.

17. 9:00 AM CASE NUMBER: MSC21-02213
CASE NAME: WANG VS JOHN MUIR MEDICAL
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: JOHN MUIR MEDICAL GROUP A CALIFORNIA CORPORATION
TENTATIVE RULING:
Off calendar. Matter settled.

18. 9:00 AM CASE NUMBER: MSL17-00218
CASE NAME: HERRERA VS GOSAIN/HAPPY VALLEY
***HEARING ON MOTION IN RE: COMPEL ACKNOWLEDGMENT OF SATISFACTION OF JUDGMENT**
FILED BY: HAPPY VALLEY ROAD,LLC
TENTATIVE RULING:
Granted. The moving papers establish that the requirements are met, and there is no opposition.

19. 9:00 AM CASE NUMBER: N25-1381
CASE NAME: PETITION OF:JANE DOE
HEARING ON PETITION IN RE: FOR ORDER FOR RELIEF FROM REQUIREMENT TO PRESENT CLAIM
FILED BY: DOE, JANE
TENTATIVE RULING:
See line 22.

20. 9:00 AM CASE NUMBER: N25-1381